

It is also plain that such assignment is a condition precedent to the entitlement to the distribution described in the second sentence of Paragraph 4.

In the absence of the assignment under the first sentence, there is no breach of the second sentence. Whatever the hold-up may or may not be, there has been no showing that the assignment has occurred, and that Mr. Seeno-Jr has failed to perform his obligations under the second sentence notwithstanding the assignment having been done.

Indeed, the Court finds that Mr. Seeno-III's motion is not ripe for adjudication. He cannot purport to complain about the scope of the distribution where he has not satisfied the precondition to such distribution. "The ripeness requirement, a branch of the doctrine of justiciability, prevents courts from issuing purely advisory opinions. [Citation.] It is rooted in the fundamental concept that the proper role of the judiciary does not extend to the resolution of abstract differences of legal opinion." (*Pacific Legal Foundation v. California Coastal Com.* (1982) 33 Cal.3d 158, 170.)

As to Mr. Seeno-Jr's cross-motion, the Court is not persuaded that Mr. Seeno-Jr's interpretation is correct or that Mr. Seeno-Jr has demonstrated any basis for the relief sought. However, that controversy, if it may exist, is not ripe as described above.

In light of the above, both motions are **DENIED**. The Court admonishes all parties and their counsel that the time and effort put into these cross-motions could have more effectively been brought to bear on effectuating the settlement terms and concluding the myriad matters that the settlement was intended to end.

The Court issue shall the order after hearing.

4. 9:00 AM CASE NUMBER: C22-01746
CASE NAME: ALBERT SEENO, JR. VS. ALBERT SEENO, III
*HEARING ON MOTION IN RE: TO SEAL
FILED BY: SEENO, JR., ALBERT D.
TENTATIVE RULING:

See Add-On LINE 2, above.

5. 9:00 AM CASE NUMBER: C22-01746
CASE NAME: ALBERT SEENO, JR. VS. ALBERT SEENO, III
*HEARING ON MOTION IN RE: TO SEAL
FILED BY: SEENO, ALBERT D., III
TENTATIVE RULING:

See Add-On LINE 2, above.